

25STCV19532 25STCV19532

County: los-angeles

Division: Civil Law and Motion

Department: 307

Hearing date: 2026-08-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C307%2C08%2F21%2F2026

Source SHA-256: 77d64596e63697f70c05eea235b10375361d7dea869fe95c4dca4e7a6fd38b05

Case Number: 25STCV19532 Hearing Date: August 21, 2026 Dept: 307

16 TENTATIVE RULING 9:15 a.m., Friday, August 21, 2026

MATTHEW

C. PHANEUF v. GENERAL MOTORS, LLC [25STCV19532]

DEFENDANT

GENERAL MOTORS, LLC'S MOTION FOR SUMMARY JUDGMENT, OR ALTERNATIVELY, SUMMARY
ADJUDICATION AS TO THE REMAINING CAUSES OF ACTION IN THE FIRST AMENDED
COMPLAINT

NOTICE: WAIVED

GM failed to add an

additional two-days to the notice period (as required for electronic service),
but Plaintiff does not challenge notice and opposes the merits of the motion,
thus waiving the notice defect.

TIMELINE:

Lemon law action

12/4/2023: Plaintiff Matthew C. Phaneuf

("Plaintiff") purchases a Certified Pre-Owned ("CPO") 2019 Chevrolet Silverado
1500 (the "Vehicle") from Tracy Chevrolet ("Tracy"), a dealership which is
licensed to sell and service Vehicles manufactured by Defendant General Motors,
LLC ("GM"). (Perez Decl., Exh. 1; Pl. Depo., at pp. 21:7-22:14, 44:19-24.) In
connection with his purchase the of the
Vehicle, Plaintiff received a CPO limited written warranty from GM. (FAC, Exh.
1; Perez Decl., Exhs. 14A, D.)

After

the sale, the Vehicle exhibits recurring engine, transmission, braking, and related defects. (Perez Decl., Exhs. 2-8; Pl. Depo., at pp. 34:19-37:24, 44:13-46:4, 48:23-51:16; Phaneuf Decl., Exh. A.)

12/12/2023: Plaintiff presents the Vehicle to

Tracy with a complaint that the Vehicle's service brake pad light had turned on and that the Vehicle was shuddering when shifting gears. Tracy's repair technicians replaced the Vehicle's rear rotors and brake pads and flushed the transmission, which took five days. (Perez Decl., Exh. 2; Pl. Depo., at pp. 44:19-46:4.)

5/4/2024: Plaintiff presents the Vehicle to

Mazzei Chevrolet ("Mazzei") for standard maintenance, which took one day. (Perez Decl., Exhs. 14-15.)

6/12/2024: Plaintiff presents the Vehicle to

Mazzei with a complaint that the Vehicle's check engine light was on. Mazzei's service technicians replaced the Vehicle's solenoid valve, which took two days. (Perez Decl., Exh. 3; Pl. Depo., at pp. 38:16-40:6.)

7/8/2024: Plaintiff presents the Vehicle to

Mazzei with a complaint that the Vehicle's check engine light was on. Mazzei's service technicians performed a circuit overlay, which took eight days. (Perez Decl., Exh. 4; Pl. Depo., at pp. 40:7-41:22.)

12/10/2024: Plaintiff presents the Vehicle to

Mazzei with a complaint that a squeal was coming from the engine and that the Vehicle was shuddering while driving and shifting gears. Mazzei's service technicians replaced the engine belt, which took four days. (Perez Decl., Exh. 5; Pl. Depo., at pp. 34:13-37:12.)

4/23/2025: GM opts in to the statutory

framework under Code of Civil Procedure section 871.20 et seq. (Perez Decl., Exh. 16.)

6/11/2025: Plaintiff presents the Vehicle to

Fairfield Chevrolet ("Fairfield") with a complaint that the air conditioner was blowing hot air. Fairfield's service technicians replaced the air conditioning

compressor system, which took fourteen days. (Perez Decl., Exh. 6; Pl. Depo., at pp. 42:14-43:7.)

12/5/2025: Plaintiff presents the Vehicle to Aaron's Automotive (which is not an authorized GM repair facility) with a complaint that the Vehicle's transmission was abnormally shifting. The Vehicle's transmission was serviced. (Perez Decl., Exh. 7; Pl. Depo., at pp. 47:13-48:13.)

4/3/2026: Plaintiff presents the Vehicle to Fairfield with a complaint that the Vehicle was making a loud grinding noise when making turns. Fairfield's service technicians replaced the Vehicle's right front wheel shaft and serviced the transmission fluid and filter, which took thirty-two days. (Perez Decl., Exh. 8; Pl. Depo., at pp. 48:19-51:6.)

6/30/2025: Plaintiff files the Complaint. The operative First Amended Complaint ("FAC"), filed 12/22/2025, alleges causes of action for:

1.
Violation
of Civil Code section 1793.2, subdivision (d)
2.
Violation
of Civil Code section 1793.2, subdivision (b)
3.
Violation
of Civil Code section 1793.2, subdivision (a)(3)
4.
Breach
of the Implied Warranty of Merchantability
5.
Fraudulent
Inducement-Concealment

3/12/2026: The Court sustains GM's demurrer to the fifth cause of action in Plaintiff's FAC with leave to amend. However, Plaintiff

does not file an amended pleading.

6/1/2026: GM files this Motion for Summary

Judgment/Adjudication as to the remaining claims in the FAC, which is followed by Plaintiff's Opposition (7/31/2026) and GM's Reply (8/10/2026).

TENTATIVE

RULING: MOTION FOR SUMMARY ADJUDICATION OF DEFENDANT GENERAL MOTORS, LLC is GRANTED in part and DENIED in part.

I. MOTION

FOR SUMMARY ADJUDICATION

A. 1st through 3rd Causes of

Action: Violation of Civil Code section 1793.2, subds. (d), (b), and (a)(3) — GRANTED

GM argues that Plaintiff's first, second, and third causes of action are barred by the six-year statute of repose set forth in Code of Civil Procedure^[1] section 871.21. (Mot., at p. 2, 6-7.) Under this statute, "an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle." (Code Civ. Proc., § 871.21, subd. (b).)

As a preliminary matter, the Court finds that Plaintiff's first through third causes of action are enumerated under section 871.20, which identifies the claims governed by section 871.21. Section 871.20 states in relevant part:

(a) [T]his chapter applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.⁂⁂⁂

⁂⁂⁂

(b) This chapter does not apply to service contract claims under Section 1794 of the Civil Code or any action seeking remedies that are not restitution or replacement of a motor vehicle. 2222 222

(Code Civ. Proc., § 871.20.) Here, Plaintiff's first and second causes of action are brought under Civil Code section 1793.2, subdivisions (d) and (b), which are expressly covered by the plain language of section 871.20, subdivision (a). Similarly, Plaintiff's third cause of action is brought under Civil Code section 1793.2, subdivision (a)(3) and seeks to enforce the express warranties under this section via civil penalties pursuant to Civil Code section 1794, subdivision (c). (FAC, ¶ 65.) Claims for the enforcement of warranties under Civil Code section 1794, subdivision (c) explicitly fall within the covered claims defined by section 871.20, subdivision (a). Accordingly, Plaintiff's first through third causes of action are governed by the six-year statute of repose under section 871.21, subdivision (b).

In this case, Plaintiff concedes that he purchased the Vehicle used as a CPO vehicle on December 4, 2023. (Perez Decl., Exh. 1; Pl. Depo., at pp. 21:7-22:14, 44:19-24.) Plaintiff also concedes that the Vehicle was first sold to its original owner on March 25, 2019 and sold again to its second owner on November 12, 2020 before Plaintiff ultimately purchased the Vehicle in December 2023. (Perez Decl., Exhs. 14-15.) GM argues that the starting point of the six-year statute of repose should be calculated based on the date of the "original delivery" of the Vehicle to its first owner, not based on the date of the delivery of the used Vehicle to Plaintiff. (Mot., at p. 7; Code Civ. Proc., § 871.21, subd. (b).) If March 25, 2019 constitutes the date of "original delivery" for purposes of section 871.21, subdivision (b), Plaintiff's claims would have expired on March 25, 2025. In response, Plaintiff argues that the starting point of the six-year period must begin on the date that the Vehicle was delivered to Plaintiff in December 2023 because Plaintiff received a new CPO warranty in connection with his Vehicle, which serves as the basis of this lawsuit. (Opp., at p. 4; see FAC, Exh. 1.) If December 4, 2023 constitutes the date of "original delivery" for purposes of the statute of repose, Plaintiff's claims would not yet be time-barred. The Court rules in favor of GM on this issue.

In enacting section 871.20, subdivision (b), the Legislature was explicit: the statute of repose begins to run as of "the date of original delivery of the motor vehicle" (i.e. delivery to the

Vehicle's original purchaser, not to subsequent purchasers). (Code Civ. Proc., § 871.21, subd. (b).) This plain statutory text omits any reference to the date that a CPO vehicle or CPO warranty is delivered to the plaintiff and focuses only on the date of the original delivery of the vehicle. The Legislature's intent is unambiguous here. Had the Legislature intended to create an exception for subsequent deliveries of used vehicles (even those that qualify for CPO status), the Legislature could have expressly included such an exception to reset the accrual of the six-year repose period upon the issuance of a CPO warranty. The Legislature did not do so. This conclusion is also consistent with the policies underlying the creation of a statute of repose in general, because it does not unnecessarily extend the repose period for each subsequent purchaser. (See *Burroughs v. Precision Airmotive Corp.* (2000) 78 Cal.App.4th 681, 689 ["A statute of repose is a legal recognition that, after an extended period of time, a product has demonstrated its safety and quality, and that it is not reasonable to hold a manufacturer legally responsible for an accident or injury occurring after that much time has elapsed."].)

Even if Plaintiff's "new" CPO warranty first issued in connection with the sale of the Vehicle to Plaintiff were sufficient to bring the Vehicle within the definition of a "new motor vehicle" for purposes of the Song-Beverly Act's express warranty remedies, Plaintiff offers no legal authority to suggest that the issuance of new or additional warranty coverage extends the time-period for the statute of repose. (*Rodriguez v. FCA US LLC*, (2024) 17 Cal.5th 189, 196-198; *Kiluk v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 334, 336.) In other words, while Plaintiff's "new" CPO warranty does impact the one-year statute of limitations under section 871.21, subdivision (a) (which is calculated based on the expiration of the relevant warranty), the CPO warranty has no impact on the six-year outer limit for Song-Beverly claims imposed by subdivision (b).

Accordingly, under the plain language of section 871.21, subdivision (b)'s statute of repose, the Court finds that Plaintiff was required to file this action no later than six years after the date of the Vehicle's delivery to the original purchaser on March 25, 2019. (*Perez Decl.*, Exhs. 14-15.) Because Plaintiff did not file the instant lawsuit until June 30, 2025, several months after the expiration of the six-year repose period, Plaintiff's first through third causes of action are time barred. While section 871.21, subdivision (c) does provide limited tolling exceptions to the section 871.21 statute of repose, Plaintiff has not alleged any facts or provided any evidence to suggest that these specific tolling exceptions are applicable here. For example, although the

evidence suggests that the Vehicle was held by GM's authorized repair facilities for repairs, Plaintiff is unable to demonstrate that the Vehicle was held for over 97 total days, which would toll the repose period through the date of filing on June 30, 2025. (Code Civ. Proc., § 871.21, subd. (c)(2).)

Plaintiff argues that the retroactive application of section 871.21 to Plaintiff's claims is unconstitutional. (Opp., at p. 6.) "[A] statute may be applied retroactively only if it contains express language of retroactivity or if other sources provide a clear and unavoidable implication that the Legislature intended retroactive application." (McClung v. Emp. Dev. Dep't (2004) 34 Cal.4th 467, 475.) Here, section 871.30, subdivision (a) expressly permits a vehicle manufacturer to elect to be governed by Chapter 12 for all actions described in section 871.20, subdivision (a) "with respect to all of its motor vehicles sold in the year 2025 and in all prior years by providing written notice of that election to the Arbitration Certification Program within the Department of Consumer Affairs." (Code Civ. Proc., § 871.30(a), italics added.) Plaintiff admits that GM opted into this statutory framework on April 30, 2025, prior to the filing of this lawsuit. (Opp., at p. 6; see Perez Decl., Exh. 16.) Once GM opted in pursuant section 871.29, Plaintiff's Vehicle became subject to these provisions. (Code Civ. Proc., § 871.30.)

Further, as GM indicates, the relevant statutory framework was enacted in September 2024, with an effective date of January 1, 2025. (Rep., at p. 5.) The undisputed evidence reflects that by September 2024, Plaintiff had already presented the Vehicle for repairs (excluding basic maintenance) on at least three occasions. (Perez Decl., Exhs. 2-4; Pl. Depo., at pp. 38:16-41:22, 44:19-46:4.) Plaintiff also sought additional repairs in December 2024, after the statute of repose was enacted but before it became effective. (Perez Decl., Exh. 5; Pl. Depo., at pp. 34:13-37:12.) Even further, Plaintiff admits in his declaration that he had developed "significant concern about the reliability and safety of the vehicle" as early as July 2024. (Phaneuf Decl., ¶ 6.) Based on this timeline, Plaintiff would have had sufficient notice of his potential lemon law claims against GM several months before the statute of repose took effect. Because Plaintiff could

have filed his Song-Beverly claims within a reasonable time before the statute of repose became effective as to Plaintiff's Vehicle, Plaintiff cannot reasonably argue that he is unfairly prejudiced by the retroactive application of this statutory framework to his lemon law claims. Accordingly, Plaintiff fails to demonstrate that the application of the statute of repose to the instant claims violates Plaintiff's due process rights.

Therefore, the Court finds that Plaintiff's first through third causes of action are time barred as a matter of law and GM is entitled to summary adjudication in its favor on these claims.

B. 4th Cause of Action: Breach of the
Implied Warranty of Merchantability — DENIED

GM argues that Plaintiff's fourth causes of action is barred by the statute of limitations set forth under Commercial Code section 2725. (Mot., at pp. 2, 8-9.) "[T]he statute of limitations for an action for breach of [implied] warranty under the Song-Beverly Act is four years pursuant to section 2725 of the Uniform Commercial Code." (*Mexia v. Rinker Boat Co., Inc.*, (2009) 174 Cal.App.4th 1297, 1306; see *Krieger v. Nick Alexander Imports, Inc.*, (1991) 234 Cal.App.3d 205, 211 (*Krieger*)). Under this section, "[a] cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered." (Comm. Code, § 2725, subd. (2), italics added; see *Krieger*, supra, 234 Cal.App.3d at p. 211.) "Because an implied warranty is one that arises by operation of law rather than by an express agreement of the parties, courts have consistently held it is not a warranty that 'explicitly extends to future performance of the goods'" (*Cardinal Health 301, Inc. v. Tyco Electronics Corp.*, (2008) 169 Cal.App.4th 116, 134, citing Comm. Code § 2725, subd. (2), italics added.) Thus, the statute of limitations for an implied warranty of merchantability claims begins to run upon tender of delivery.

Here, GM argues that the accrual of Plaintiff's breach of the implied warranty of merchantability claim should be calculated

based on the original sale date of March 25, 2019. (Mot., at p. 9.)

Plaintiff argues that the statute of limitations instead runs from Plaintiff's purchase date of December 4, 2023. On this point, the Court agrees with Plaintiff. Unlike the Song-Beverly Act's statute of repose, Commercial Code section 2725 does not contain language referring to the "original" delivery of the Vehicle. GM offers no legal authority to support its position that the original sale date applies to Plaintiff's implied warranty claim, despite the fact that the applicable limitations period is derived from an entirely different statutory framework than section 871.21, subdivision (b). Thus, the Court finds that for purposes of Commercial Code section 2725, the limitations period for Plaintiff's implied warranty claim begins to run from the date that the Vehicle was delivered to Plaintiff, on December 4, 2023. Based on this date, Plaintiff's implied warranty claim had not expired at the time that the Complaint in this action was filed on June 30, 2025. Accordingly, GM is not entitled to summary adjudication on Plaintiff's fourth cause of action.

Based on the aforementioned analysis, GM's motion for summary adjudication is GRANTED as to Plaintiff's first through third causes of action and DENIED as to Plaintiff's fourth cause of action.

II. EVIDENTIARY OBJECTIONS

GM

objects to the Declaration of Shannon Duane (nos. 1-2) and the Declaration of Matthew C. Phaneuf (nos. 3-13). The following evidentiary objections are SUSTAINED: 8 (relevance) and 11 (improper opinion testimony). The following objections are OVERRULED: 1, 2, 3, 4, 5, 6, 7, 9, 10, 12, and 13.

III. REQUEST FOR JUDICIAL NOTICE

GM

requests judicial notice of the fact that GM timely opted in to the section 871.20 statutory framework on April 23, 2025, in accordance with section 871.30. (Perez Decl., ¶ 15, Exh. 15.) Plaintiff does not dispute this fact. Accordingly, the Court takes judicial notice of this fact pursuant to Evidence Code section, 452, subdivision (h).

Defendant

General Motors, LLC to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute.

TR

emailed to counsel and posted to court's website on 8/20/26 at 1:30.

[1] Hereinafter, references to section numbers that do not indicate a specific Code are referring to the Code of Civil Procedure.